

Appellant vs Smt. Rupali Barglary on 16 August, 2024

GAHC010160212019

THE GAUHATI HIGH COURT AT GUWAHATI
(The High Court of Assam, Nagaland, Mizoram and Arunachal Pradesh)
PRINCIPAL SEAT AT GUWAHATI

Testamentary Appeal No. 3/2022

SMT. PRATIMA DUTTA
W/O- LATE HARKANTA DUTTA,
R/O- VILL.- BALIKARIA, P.O. BALIKARIA,
P.S. NALBARI, DIST.- NALBARI,
ASSAM, PIN- 781335.

.....Appell

VERSUS

SMT. RUPALI BARGLARY
R/O- DIPHU NEAR ITI, P.O. AND P.S. DIPHU,
DIST.- KARBI ANGLONG,
ASSAM AND OFFICE ADDRESS FOR SERVICE NOTICE- C/O- EXECUTIVE
ENGINEER, PUBLIC HEALTH ENGINEERING DEPARTMENT, DIPHU RURAL
W/S DIVISION, DIPHU, ASSAM, PIN- 782460

.....Respond

Advocate for the Appellant	:	Mr. D. Choudhury
Advocate for the Respondent	:	Mr. B.P. Borah.

BEFORE
HON'BLE MR. JUSTICE ROBIN PHUKAN

Date of Hearing : 13.08.2024

Date of Judgment : 16th August, 2024

JUDGMENT AND ORDER

Heard Mr. D. Choudhury, learned counsel for the appellant and Mr. B.P. Borah, learned counsel for the respondent.

2. This appeal under Section 384 of the Indian Succession Act, 1925, is directed against the order dated 02.03.2012 passed in Succession Certificate No.47/2011 and the order dated 23.04.2012 for granting extended certificate in Succession Certificate No.47/2011 issued by the Deputy Commissioner, Karbi Anglong, Diphu. It is to be noted here that vide impugned order dated 02.03.2012 passed in Succession Certificate No.47/2011, the Deputy Commissioner, Karbi Anglong, Diphu, has granted Succession Certificate in favour of the respondent of this appeal and vide order dated 23.04.2012, the Deputy Commissioner, Karbi Anglong, Diphu, has issued extended succession certificate in respect of the following dues of her deceased husband:

(i)	GIS	- Rs.4,560/-
(ii)	Leave Salary	- Rs.1,04,454/-
(iii)	D.C.R.G.	- Rs.1,23,970/-

3. The background facts, leading to filing of the present appeal, is adumbrated herein below:-

"The appellant Smt. Pratima Dutta is the wife of late Hara Kanta Dutta, who was serving in the office of the Executive Engineer, Public Health Engineering (PHE) Department, Diphu Rural W/S Division, Diphu. He died intestate and after his death on 14.10.2011, the respondent herein Smt. Rupali Baglary Dutta filed a petition for granting succession certificate before the Deputy Commissioner, Karbi Anglong, Diphu, for GIS amounting to Rs.2,00,000/- of her deceased husband. Upon the said petition, the Deputy Commissioner, Karbi Anglong, Diphu, has registered a case, being Succession Certificate No.47/2011 and thereafter, vide impugned orders dated 02.03.2012 and 23.04.2012 had granted succession certificate in respect of GIS for Rs.4,560/-, Leave Salary for Rs.1,04,454 and DCRG for Rs.1,23,970/-."

4. Being aggrieved, the present appellant, who happens to be the first wife of late Hara Kanta Dutta, preferred this appeal, on the following grounds:-

(i) That, the succession certificate was granted under Section 372 of the Indian Succession Act, 1925, without application of mind.

(ii) That the respondent (applicant) suppressed the material fact that the deceased was the husband of the appellant and his property is situated at village Balikaria of Nalbari district and committed fraud in seeking succession certificate, being not legally married wife.

(iii) That the respondent made false statement in paragraph 4 of the application that there is no other legal relatives of late Hara Kanta Dutta except her and she was getting maintenance under Section 125 of the Code of Criminal Procedure as per order dated 18.12.1992 passed in Misc. Case No.72m/1991.

(iv) That the respondent has suppressed the material fact that she was not legally married wife of the deceased and she has no right over the pension and other retirement benefits in view of Assam Services Pension Rules, 1963 or under Hindu Marriage Act and Hindu Succession Act.

(v) That, no notice was issued to the original place of the deceased where he had his property and where he ordinarily too resided with his wife.

(vi) That the present appellant was not made a party in the proceeding for granting succession certificate and the order was passed without hearing the appellant, though she is legally married wife and Class-I heir of the deceased.

5. Mr. Choudhury, learned counsel for the appellant, submits that the Succession Certificate No.47/2011 was obtained by practicing fraud and that the appellant, being the first wife, is entitled to the pensionary dues of late Hara Kanta Dutta and that the appellant has never made a party in the Succession Certificate and no notice was issued to her and the respondent suppressed that she is not the legally wedded wife and as such, in view of the provisions of Section 383 of the Indian Succession Act, the succession certificate so issued is required to be revoked and the impugned orders are liable to be set aside and quashed. Referring to following decisions Mr. Choudhury submits that only the legally married first wife is entitled to pensionary benefits of her deceased husband who died intestate. Mr. Choudhury has referred the following decisions in support of his submission:-

(i) Bulu Das and Ors. vs. Moni Das and Anr reported in 2003(3) GLT 400,

(ii) Nandita Shiland Anr vs. State of Tripura, reported in 2009(3) GLT 153

(iii) G.L. Bhatia vs. Union of India 1999(9) Supreme

308.

6. Per contra, Mr. B.P. Borah, learned counsel for the respondent, submits that the respondent was not aware of the fact that the appellant is the first wife of late Hara Kanta Dutta and that the succession certificate, which was prayed for in respect of the dues of late Hara Kanta Dutta, was lying in the office of the Executive Engineer, Public Health Engineering Department, Diphu and as such, the petition was filed before the Deputy Commissioner, Karbi Anglong, Diphu and there is no suppression of fact or practicing fraud as it was not in her knowledge that the appellant is the first wife of late Hara Kanta Dutta and the grounds mentioned in the appeal are not maintainable and therefore, Mr. Borah has contended to dismiss the appeal.

7. To a pointed query of this Court, Mr. Borah fairly submits that no notice was issued to the appellant and who was also not made a party in the petition filed by the respondent before the Deputy Commissioner, Karbi Anglong, Diphu.

8. Having heard the submission of learned Advocates of both sides, I have carefully gone through the appeal as well as the grounds mentioned therein and the documents placed on record and also gone through the relevant provision of law.

9. It appears that succession certificate was applied for under Section 372 of the Indian Succession Act by the respondent. A bare perusal of the section reveals that Sub-section 1(c) requires that the applicant has to furnish the particulars of the family or near relatives of the deceased and their respective residence. Sub-section 1(d) requires that particulars of the right in which the petitioner claims. However, on perusal of the petition filed by the respondent seeking succession certificate reveals that the aforementioned requirements have not been complied with. The appellant herein was not made a party and no notice was also issued to her and her sons. Though Mr. Borah submits that it was not in the knowledge of the respondent that the present appellant is the first wife of the deceased Hara Kanta Dutta, yet, the same left this Court unimpressed.

10. It is to be noted here that Section 383 of the Indian Succession Act provides for revocation of certificates, which states that a certificate granted under this part may be revoked for any of the following causes, namely:-

(a) that the proceedings to obtain the certificate were defective in substance;

(b) that the certificate was obtained fraudulently by making a false suggestion, or by concealment from the Court of something material to the case;

(c) that the certificate was obtained by means of untrue allegation of a fact essential in point of law to justify the grant thereof, though such allegation was made in ignorance or inadvertently;

(d) that the certificate has become useless and inoperative through circumstances;

(e) that a decree or order made by a competent Court in a suit or other proceeding with respect to effects comprising debts or securities specified in the certificate renders it proper that the certificate should be revoked.

11. In the case in hand, having considered the submission of learned Advocates of both sides and also considering the materials placed on record i.e. the impugned orders dated 02.03.2012 and 23.04.2012, the Succession Certificate and Extended Succession Certificate, and the statement and averment made in the appeal memo, this Court finds that the proceeding to obtain the succession certificate instituted before the Deputy Commissioner, Karbi Anglong, Diphu, is defective. The appellant herein, who is the first wife of late Hara Kanta Dutta and Class-I heir, was not made a party and no notice was issued to her. Besides, the certificate was obtained fraudulently as her legal status was not projected truly. She is not the first wife of the deceased Hara Kanta Dutta, rather she is the third wife. Further, the averments made in the petition, that she is the only legal heir of the deceased Hara Kanta Dutta are fake. Indisputably, she is the third wife of deceased Hara Kanta Dutta.

12. It is to be noted here that Hon'ble Supreme Court in the case of Rameshwari Devi v. State of Bihar, reported in AIR 2000 SC 735, while dealing with the property of a male Hindu, dying intestate, has held thus :

"It cannot be disputed that the marriage between Narain Lal and Yogmaya Devi was in contravention of Clause (i) of Section 5 of the Hindu Marriage Act and was a void marriage. Under Section 16 of this Act, children of void marriage are legitimate. Under the Hindu Succession Act, 1956, property of a male Hindu dying intestate devolve firstly on heirs in Clause

(i) which include widow and son. Among the widow and son, they all get shares (see Sections 8, 10 and the Schedule to the Hindu Succession Act, 1956).

Yogmaya Devi cannot be described as a widow of Narain Lal, her marriage with Narain Lal being void."

(Emphasis is added)

13. Thus, the appellant herein has successfully demonstrated existence of at least three grounds, as mentioned in Section 383, for revocation of the aforementioned succession certificates. Further, the impugned orders so passed by the Deputy Commissioner, Karbi Anglong, Diphu, are not sustainable in view of the fact that the same was passed in contravention of the provisions of law and pursuant to false statement and averment made in the petition, and thereby failed to withstand the legal scrutiny.

14. I have carefully gone through the decisions referred by Mr. Chaudhury, the learned counsel for the appellant and I find that in the said decisions the issue of family pension of the deceased husband/wife, who died intestate, was dealt with. In the instant appeal the same is not the issue. Therefore, the decision referred by Md. Choudhury would not come into his assistance.

15. In the result, this Court finds that this appeal succeeds and accordingly, the same stands allowed. The impugned orders dated 02.03.2012 and 23.04.2012 are set aside and quashed and consequent upon the Succession Certificates, issued vide aforesaid orders, stands revoked.

16. In terms of above this appeal stands disposed of. The parties have to bear their own costs.

Sd/- Robin Phukan JUDGE Comparing Assistant